



CONFIDENTIALITY AND INTELLECTUAL PROPERTY AGREEMENT

Independent Sales Partner Program

This Confidentiality and Intellectual Property Agreement (the "Agreement") is entered into as of _____ (the "Effective Date") by and between Charter Oaks Assets, Inc. d/b/a Mercury Call Desk ("MCD" or "Company") and _____ ("Partner"). It supplements the Sales Partner Agreement.

1. Confidential Information

1.1 Definition

"Confidential Information" means all non-public information disclosed by or on behalf of MCD, whether oral, written, visual, electronic, or accessed through MCD systems, including:

- Internal pricing mechanics, published wholesale costs, margin floors, setup-fee economics, commission calculations, statements, and compensation terms.
- Sales scripts, prospecting methods, discovery frameworks, objection handling, training, playbooks, and internal collateral.
- Leads, prospects, clients, customer lists, contact data, CRM records, notes, calendars, proposals, contracts, recordings, support activity, billing data, and account information.
- Platform, vendor, reseller, technical, integration, implementation, backend, security, business, marketing, strategy, and financial information.
- The identity and relationship of MCD's underlying platform/vendor.
- Any information marked confidential or reasonably understood to be confidential.

1.2 Exclusions

Confidential Information does not include information Partner can prove: (a) became public through no breach by Partner; (b) was lawfully known by Partner without an obligation of confidentiality before disclosure; or (c) was independently developed without use of MCD Confidential Information.

2. Confidentiality and Data Obligations

2.1 Authorized use only

Partner will use Confidential Information solely to perform authorized work under the Sales Partner Agreement and will not disclose, publish, forward, reproduce, distribute, sell, or share it outside authorized MCD systems or personnel.

2.2 Reasonable protection

Partner will use reasonable care to protect Confidential Information and will access only the records assigned or authorized to Partner.



2.3 No export or personal storage

Partner will not export, download, screenshot, copy, retain, or place MCD Confidential Information in personal email, spreadsheets, personal storage, messaging apps, social media, or any unapproved tool or device.

2.4 Personal prospecting accounts

Partner may use personal social accounts and devices only for permitted independent prospecting. Meaningful contact must be logged in CRM, and MCD lead/customer information may not be copied or exposed through personal accounts.

2.5 Incident reporting

Partner must report any actual or suspected improper storage, loss, export, screenshot, access, disclosure, security incident, or misuse of Confidential Information to MCD within twenty-four (24) hours.

2.6 Separation and deletion

On separation, Partner must delete any local copies, screenshots, exports, and messages containing MCD Confidential Information within twenty-four (24) hours and must not use or retain them thereafter.

3. Intellectual Property

3.1 Company materials

All MCD-provided materials, branding, scripts, processes, content, software, technical materials, data, CRM configurations, customer records, leads, proposals, recordings, and derivatives remain the exclusive property of MCD or its licensors.

3.2 MCD-specific work product

To the extent Partner creates or contributes any MCD-specific work product in connection with MCD materials, customers, prospects, marketing, demos, scripts, recordings, CRM configurations, content, or operations, Partner assigns to MCD all right, title, and interest in that MCD-specific work product and will sign reasonable documents needed to confirm the assignment.

3.3 Partner-retained materials

Partner retains general sales skills, pre-existing independently created materials, and non-confidential experience, provided Partner does not use or disclose MCD Confidential Information or MCD-owned work product.

3.4 Limited brand license

MCD grants Partner a limited, revocable, non-transferable right to use approved MCD brand assets and materials only while authorized under the Sales Partner Agreement and only for approved MCD-related activity.

3.5 Public case-study use

Partner may publicly use generic, anonymized experience or metrics in good faith. Use of an identifiable client name, logo, screenshot, testimonial, case study, or result requires prior written approval from both MCD and the client.

4. Public Statements and Brand Use

Partner may represent itself in authorized outbound business activity as an MCD Account Executive, Sales Representative, or Sales Agent and may use approved MCD website/brand assets in good faith.



Partner may not disclose internal pricing mechanics, wholesale costs, commission splits, vendor/platform relationships, backend operations, scripts, client/lead data, or any other Confidential Information.

Partner may not make false, misleading, or unapproved claims about MCD, including guaranteed income, revenue, savings, compliance, staffing reduction, service level, implementation timing, customer outcome, or reseller status.

5. Return of Materials and Access

MCD may revoke access to systems, email, assets, documents, and materials at any time as allowed by the Sales Partner Agreement.

Upon termination or request, Partner must promptly stop using MCD brand/assets and return or delete MCD materials as directed. Company email and active access end immediately on separation.

A former Partner granted restricted retained-client CRM access receives only the access expressly approved by MCD and remains bound by this Agreement.

6. Remedies

Partner acknowledges that unauthorized use or disclosure of Confidential Information or MCD IP may cause harm that cannot be fully remedied by money damages. MCD may seek injunctive or equitable relief where permitted, in addition to other remedies. Suspected theft, fraud, or criminal data misuse may be referred to law enforcement.

7. Term and Survival

This Agreement begins on the Effective Date. Confidentiality obligations continue while information remains confidential and for at least three (3) years after termination, except trade-secret obligations continue for as long as information remains protected as a trade secret under applicable law.

IP assignment and ownership provisions are perpetual. Data-use, deletion, and restricted-access obligations survive termination.

8. General

This Agreement supplements the Sales Partner Agreement. If the agreements conflict regarding confidentiality, data, brand, or intellectual property, this Agreement controls.

California law governs this Agreement without regard to conflict-of-laws rules.

The dispute-resolution provisions in the Sales Partner Agreement apply to this Agreement, except MCD may seek court injunctive or equitable relief where permitted to protect Confidential Information or IP.

If any provision is unenforceable, the remainder remains in effect. No waiver is implied by non-enforcement.

Signatures

SALES PARTNER

Legal Name / Business Name: _____

Verified Personal Email: _____

Signature: _____

Date: _____